

[YOUR LAWYER'S LETTERHEAD]

[DATE]

VIA CERTIFIED MAIL AND EMAIL

Albert Compaglia

[Al's Address]

RE: FORMAL NOTICE OF CLAIM — LANDRAY TECHNOLOGY, INC. STOCK PROCEEDS
Estate of Donna Elizabeth McCaa; Helen "Honey" Anne McCaa

Dear Mr. Compaglia and [Al's Counsel if known]:

This letter constitutes formal notice of a legal claim by our client, **Helen "Honey" Anne McCaa**, to a portion of the proceeds from any sale, liquidation, or other disposition of stock in **LandRay Technology, Inc.**

Ms. McCaa bases this claim on community property rights and an enforceable oral contract/promise as set forth below.

I. FACTUAL BACKGROUND

A. The Community Property Interest

Your former spouse, **Donna Elizabeth McCaa**, passed away on **August 13, 2020**, without a will. At the time of your marriage dissolution, you owned stock in LandRay Technology, Inc. Under **California Family Code §2640 and community property law**, Ms. Donna McCaa retained an interest in one-half (50%) of any appreciation or proceeds from that stock during the marriage, notwithstanding your subsequent divorce. This is not disputed—you have acknowledged this entitlement.

B. Donna's Express Intent to Bequeath Her Interest to Ms. McCaa

On multiple occasions spanning from **2015 through August 2020** (days before her death), Donna Elizabeth McCaa made clear, repeated, and unequivocal oral statements to our client expressing her intent to bequeath her entire interest in the LandRay proceeds to Ms. McCaa. Specifically:

1. In **2015**, Donna informed Ms. McCaa that she was having a will drafted naming Ms. McCaa and Richard Largay as her sole heirs, and that Donna intended her entire LandRay interest to pass to Ms. McCaa.
2. Donna sent you (Mr. Compaglia) an **email in or around 2015** explicitly declaring her intent to bequeath her LandRay interest to Ms. McCaa. Ms. McCaa was included on the blind copy (bcc) of this communication. While that specific email has not been located, its existence is corroborated by this communication chain.
3. **Over subsequent years**, Donna repeatedly reiterated to Ms. McCaa her intent that the LandRay shares should go to Ms. McCaa, including the statement that if Richard Largay predeceased her, Ms. McCaa would be the **sole beneficiary** of the LandRay interest.
4. **Directly from you**: You have personally confirmed to Ms. McCaa that Donna's stated intent was to leave her LandRay interest to Ms. McCaa. This confirmation is material evidence of the promise's authenticity.
5. **Days before her death** (approximately **August 10-13, 2020**), Donna spoke with you about LandRay, and afterward told Ms. McCaa that you had reconfirmed the value of the shares at approximately **\$6-8 million**.

C. The Strategic Non-Disclosure During Divorce

A further circumstance corroborating the significance and value of the LandRay asset and Donna's intent regarding it:

During your divorce proceedings with Donna, you and she made a **deliberate verbal agreement to exclude all mention of LandRay Technology from the divorce settlement and disclosures**. This decision was made because Donna was employed by a company facing bankruptcy, and you both agreed that excluding LandRay from divorce paperwork would shield the asset from potential creditor claims arising from her employer's financial collapse.

This strategic exclusion demonstrates that:

- You both acknowledged LandRay as a valuable and distinct community property asset

- You both understood its legal significance in a divorce context
- You both took affirmative steps to protect it—further evidence of the asset's real and substantial nature
- Donna's intent to control the disposition of her interest (via her oral promises) must be understood in the context of this deliberate protection

II. LEGAL BASIS

A. California Probate Code §21700 — Oral Promises to Make Bequests

California Probate Code §21700(a) permits enforcement of an oral promise to make a bequest through clear and convincing evidence of an agreement or promise between the decedent and the claimant, **or** between the decedent and a third party for the claimant's benefit.

Cal. Prob. Code §21700(a)(4) — An agreement between the decedent and the claimant to make a bequest, evidenced by:

- Clear and convincing evidence
- In the decedent's handwriting, OR
- Confirmed by credible evidence corroborating the agreement

Cal. Prob. Code §21700(a)(5) — An agreement between the decedent and another person (here: Mr. Compaglia) that benefits the claimant, similarly corroborated.

Ms. McCaa satisfies both prongs:

1. **Direct promises to Ms. McCaa** (§21700(a)(4)): Donna made repeated, clear, and unambiguous oral statements over five years expressing her intent to bequeath her LandRay interest to Ms. McCaa. These statements are consistent, remembered by Ms. McCaa with specificity, and corroborated by contemporaneous written evidence (the 2015 email, even if not currently in possession).
2. **Confirmation from Mr. Compaglia** (§21700(a)(5)): You, Mr. Compaglia, have personally confirmed to Ms. McCaa that Donna expressed this intent to you. Your confirmation serves as third-party corroboration that substantially elevates the credibility and clarity of the promise.

B. Community Property Entitlement

Regardless of probate claims, Donna's one-half interest in LandRay proceeds stems from **community property law** and constitutes a real property right. Upon her death, that right passes to her heirs or estate. Ms. McCaa, as the intended beneficiary of that specific interest, has a claim to enforce it.

III. VALUATION

You have stated that the LandRay shares are worth approximately **\$6-8 million**. Donna's one-half interest would thus represent **\$3-4 million** in potential proceeds. Ms. McCaa's claim is to this amount (or such portion as is legally determined to be owed).

IV. DEMAND FOR ACKNOWLEDGMENT

To avoid litigation and establish a clear record of Ms. McCaa's claim, we demand that you and/or your counsel provide, within **30 days of receipt of this letter**, written acknowledgment that:

1. Donna Elizabeth McCaa held a community property interest in your LandRay Technology, Inc. stock;
2. Donna orally promised to bequeath that interest to Ms. McCaa;
3. You confirm having heard Donna express this intent;
4. You acknowledge Ms. McCaa's legal claim to a portion of any LandRay sale proceeds; and
5. You agree to hold in trust or otherwise preserve Ms. McCaa's proportionate share pending final legal determination.

Alternatively, if you do not acknowledge this claim, we request a meeting with your legal counsel within 14 days to discuss potential resolution before any sale or liquidation event.

V. NOTICE OF INTENT

Please be advised that if LandRay Technology, Inc. proceeds toward a sale, merger, liquidation, or other disposition event **without resolution of this claim**, Ms. McCaa reserves all rights to:

- File a claim against the sale proceeds in escrow or held by any buyer/escrow agent;

- Pursue legal action in probate or civil court to establish and enforce her interest;
- Seek attachment or garnishment of proceeds;
- Hold you and any successors-in-interest personally liable for tortious interference with contract/promise if proceeds are distributed without acknowledgment of her claim.

This notice is necessary to preserve Ms. McCaa's rights and to ensure you have clear knowledge of the claim prior to any transaction closing.

VI. PRESERVATION OF EVIDENCE

We also request that you preserve all documents, communications, and records relating to:

- LandRay Technology, Inc. stock ownership and valuation
- Any communications with Donna regarding LandRay or her intent to bequeath it
- Any communications with Ms. McCaa regarding Donna's wishes
- Any sale negotiations, term sheets, or transaction documents related to LandRay
- Email records from 2015-2020 (particularly the 2015 email referenced above)

VII. CONTACT & NEXT STEPS

Please direct all correspondence regarding this matter to the undersigned. We are prepared to discuss resolution amicably, but we will pursue this claim through all available legal remedies if necessary.

Response deadline: [DATE - 30 days from letter date]

Sincerely,

[Your Lawyer's Name]
[Firm Name]
[Address]
[Phone]
[Email]

Enclosures:

Copy of attorney opinion letter (Paige Gold, dated September 19, 2025)